

25NWLC74728 25NWLC74728

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-09-09

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Case Number: 25NWLC74728 Hearing Date: September 9, 2026 Dept: Y

25NWLC74728: WELLS FARGO BANK, N.A. vs KENNETH J LICATA

Tentative Ruling:

The Court has read and reviewed all moving documents filed by Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") in support of its motion for summary judgment, including the separate statement and supporting evidence.

Plaintiff's motion for summary judgment was filed on June 3, 2026 and set for hearing on September 9, 2026. No opposition has been filed by Defendant Kenneth J. Licata ("Defendant").

The Court finds that Plaintiff has met its initial burden of showing there are no triable issues of material fact as to Plaintiff's cause of action for breach of written contract by presenting evidence establishing each element of the cause of action thereby entitling Plaintiff to summary judgment. Plaintiff has shown, through admissible evidence, that Defendant was issued the subject credit card by Plaintiff; Defendant was the only person authorized to make charges on the account; Defendant received monthly statements for the account; and there is no record of any unresolved disputes on the account. (Plaintiff's Separate Statement of Undisputed Material Facts ("UMF") Nos. 1–9.) The evidence further shows Defendant's last payment on the account was October 13, 2024, and Defendant owes Plaintiff an unpaid balance of \$12,216.55 on the credit account. (Id., UMF Nos. 10–12.)

The burden having shifted to Defendant, the Court finds Defendant has failed to set forth specific facts showing that a triable issue of material fact exists as to any of the elements of the causes of action for breach of contract or that there is any defense thereto required by Code of Civil Procedure section 437c(p)(1).

The Court finds that Plaintiff is entitled to judgment as a matter of law and GRANTS Plaintiff's Motion for Summary Judgment as to its cause of action for breach of contract.

Judgment is hereby entered in favor of Plaintiff Wells Fargo Bank, N.A. and against Defendant Kenneth J. Licata in the principal sum of \$12,216.55, plus reasonable attorney's fees and costs. The Proposed Order will be signed by the Court.

Plaintiff must submit a Memorandum of Costs and a declaration in support of reasonable attorney's fees as well as a Proposed Judgment for the Court's review and signature.

Plaintiff to give notice.